

		As possession of the property is no longer at issue, the Court finds the Defendant is the prevailing party in this matter. The Court orders the Court Clerk to seal the record as the Defendant is the prevailing party in this matter. The Defendant is ordered to provide notice of the Court's ruling.
11	30-2026-01567683 Tran v. Kim	The Court takes Judicial Notice of related matter 30-2026-01566561-CU-OR-CJC before Judge Lee Gabriel. On 8/25/2026 the Motion to Consolidate the matters was granted by Judge Gabriel. As reflected on the 8/25/2026 Minute Order (ROA 86 on 30-2026-01566561-CU-OR- CJC) "The Court orders the following cases consolidated for all purposes: 30-2026-01566561-CU-OR-CJC Kim vs. Tran and 30-2026-01567683-CL-UD-CJC Tran vs. Kim. The Court designates 30-2026-01566561-CU-OR-CJC Kim vs. Tran as the lead case and all further documents must be filed under the case number and caption of the lead case." All future hearings and orders on this matter will be heard in Department C32.
12	30-2026-01575211 Main Street Management, Inc vs. Rios	<u>Motion to Dismiss</u> The Court has read and considered the Defendant's Motion to Dismiss (ROA 19) A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling. <u>Discovery Motions</u> The Court has read and considered the Plaintiff's Motion to Compel Production of Documents, Set One, and Request for Monetary Sanctions Against Javier Rios (ROA 39), Motion to Compel Responses to Interrogatories and Request for Monetary Sanctions Against Javier Rios (ROA 32), and Motion for Order Deeming Matters Admitted and Request for Monetary Sanctions Against Javier Rios (ROA 26).